

ESW Operations, Inc. v. IXL Learning, Inc.

AI-optimized unstructured-data analytics, layered visual analytics, and affinity scoring asserted against IXL's personalized learning and Wyzant's tutor-ranking systems.

Independent preliminary research based on public information.

FILED	FORUM	DOCKET	MATTER
2026-08-20	D. Del.	1:26-cv-01067	Patent Infringement

Prepared 2026-08-25. No attorney or expert contacted. Availability, interest, compensation, and conflicts not checked.

Public filing, likely recipient, and technical frame

CAPTION

ESW Operations, Inc. et al. v. IXL Learning, Inc. et al.

FORUM / DOCKET

D. Del. / 1:26-cv-01067

FILED / TYPE

2026-08-20 / patent infringement

PUBLIC DOCKET[Open docket](#)**VERIFIED PUBLIC RECORD**

ESW Operations, Inc. et al. v. IXL Learning, Inc. et al., No. 1:26-cv-01067, filed 2026-08-20 in D. Del..

LIKELY RESEARCH PURCHASER

Travis S. Hunter - Richards, Layton & Finger, P.A.; named matter counsel. The public docket names Hunter as counsel for both plaintiffs. His firm profile identifies him as a director with intellectual-property experience. Selecting the senior named Delaware counsel as likely purchaser is an analytical inference from those roles.

hunter@rlf.com - publicly listed on the [official firm biography](#); not inferred.

TECHNICAL FRAME

AI-optimized unstructured-data analytics, layered visual analytics, and affinity scoring asserted against IXL's personalized learning and Wyzant's tutor-ranking systems.

Secondary-source limitation: This is a preliminary technical frame based on public sources. Filed pleadings, claim charts, discovery, source code, product versions, and admissible evidence must control. [Open public synopsis](#)

Questions likely to require expert input

This issue map is a research plan, not a legal conclusion. The filed complaint, patent exhibits, intrinsic record, and discovery must control.

01 How IXL personalized-learning and Wyzant tutor-ranking pipelines ingest, structure and analyze unstructured or semi-structured data.

How IXL personalized-learning and Wyzant tutor-ranking pipelines ingest, structure and analyze unstructured or semi-structured data.

Potential evidence: Pleadings and claim charts; source code or engineering records; product and version documentation; standards and prior art; reproducible testing; and fact or technical testimony as applicable.

02 Whether accused systems compute the asserted affinity scores and how features, models and feedback affect those scores.

Whether accused systems compute the asserted affinity scores and how features, models and feedback affect those scores.

Potential evidence: Pleadings and claim charts; source code or engineering records; product and version documentation; standards and prior art; reproducible testing; and fact or technical testimony as applicable.

03 Whether layered visual analytics perform the claimed transformations or merely display outputs from separate analytics.

Whether layered visual analytics perform the claimed transformations or merely display outputs from separate analytics.

Potential evidence: Pleadings and claim charts; source code or engineering records; product and version documentation; standards and prior art; reproducible testing; and fact or technical testimony as applicable.

04 What source code, model documentation, feature stores, ranking logs, experiments and historical versions are needed to map the claims.

What source code, model documentation, feature stores, ranking logs, experiments and historical versions are needed to map the claims.

Potential evidence: Pleadings and claim charts; source code or engineering records; product and version documentation; standards and prior art; reproducible testing; and fact or technical testimony as applicable.

Questions likely to require expert input

Candidates 1-2 for further diligence

Ranked for preliminary research priority based on subject-matter fit, relevant public work, testimony, and visible diligence burden. This is not a retention recommendation.

01 Jure Leskovec

Professor of Computer Science, Stanford University

TECHNICAL FIT

Graph neural networks, large-scale data mining and recommender systems fit affinity scoring, relationship extraction and ranking over unstructured data. Matter-specific fit: IXL and Wyzant unstructured-data analytics, affinity scoring, personalization and layered visual analytics.

RELEVANT WORK

Pioneered graph neural networks and PyG; work deployed at Pinterest, Uber, YouTube, Amazon and others.

PUBLIC LITIGATION EXPERIENCE

The reviewed Stanford profile and course materials do not identify expert-testimony work.

POINTS FOR FURTHER DILIGENCE

Graph/recommender depth is stronger than educational-product source code, layered visual interfaces or patent-priority-era system history.

[Source 1](#) | [Source 2](#)

[Draft email](#) | jure@cs.stanford.edu | [public email source](#)

02 Lise Getoor

Distinguished Professor and Jack Baskin Chair in Computer Engineering, UC Santa Cruz

TECHNICAL FIT

Statistical relational learning, entity resolution and data integration fit affinity scoring, relationship inference and unstructured-data analytics. Matter-specific fit: IXL and Wyzant unstructured-data analytics, affinity scoring, personalization and layered visual analytics.

RELEVANT WORK

Leads LINQS; research includes machine learning, databases, entity resolution and information extraction.

PUBLIC LITIGATION EXPERIENCE

The reviewed UCSC profiles do not identify expert-testimony work.

POINTS FOR FURTHER DILIGENCE

More focused on relational learning than tutor ranking, education analytics or production visual-analytics architecture.

[Source 1](#) | [Source 2](#)

[Draft email](#) | getoor@ucsc.edu | [public email source](#)

Candidates 3-4 for further diligence

03 Christos Faloutsos

Fredkin University Professor of Computer Science, Carnegie Mellon University

TECHNICAL FIT

Graph/stream mining, multimedia indexing and anomaly detection fit large-scale unstructured analytics, affinity graphs and pattern scoring. Matter-specific fit: IXL and Wyzant unstructured-data analytics, affinity scoring, personalization and layered visual analytics.

RELEVANT WORK

More than 300 articles, eight patents and foundational work in graph mining, stream mining and multimedia databases.

PUBLIC LITIGATION EXPERIENCE

The reviewed CMU profiles do not identify expert-testimony work.

POINTS FOR FURTHER DILIGENCE

Broad mining expertise; less direct for user-interface layering, education-specific models or tutor-marketplace ranking implementation.

[Source 1](#) | [Source 2](#)

[Draft email](#) | christos@andrew.cmu.edu | [public email source](#)

04 Jeffrey Heer

Jerre D. Noe Professor of Computer Science & Engineering, University of Washington

TECHNICAL FIT

Interactive data analysis and layered visualization directly fit visual-analytics claims and how models expose or transform unstructured data. Matter-specific fit: IXL and Wyzant unstructured-data analytics, affinity scoring, personalization and layered visual analytics.

RELEVANT WORK

Co-created D3, Vega/Vega-Lite and Mosaic; co-founded Trifacta for scalable data transformation.

PUBLIC LITIGATION EXPERIENCE

The reviewed UW profile does not identify expert-testimony work.

POINTS FOR FURTHER DILIGENCE

Visualization strength is less direct for recommender affinity algorithms or accused server-side ranking code.

[Source 1](#)

[Draft email](#) | jheer@cs.washington.edu | [public email source](#)

Candidates 5-6 for further diligence

05 Tamara Munzner

Professor of Computer Science, University of British Columbia

TECHNICAL FIT

Visualization-system design and evaluation fit layered visual analytics, data abstraction and user-facing analytical workflows. Matter-specific fit: IXL and Wyzant unstructured-data analytics, affinity scoring, personalization and layered visual analytics.

RELEVANT WORK

Author of Visualization Analysis and Design; extensive publications on multi-level and large-scale information visualization.

PUBLIC LITIGATION EXPERIENCE

The reviewed UBC profiles do not identify expert-testimony work.

POINTS FOR FURTHER DILIGENCE

Non-U.S. academic and visualization focus; affinity-scoring algorithms and commercial education systems may require other expertise.

[Source 1](#) | [Source 2](#)

[Draft email](#) | tmm@cs.ubc.ca | [public email source](#)

06 Ben Shneiderman

Distinguished University Professor Emeritus of Computer Science, University of Maryland

TECHNICAL FIT

Foundational information visualization and HCI expertise fits layered visual analysis, feature comparison and analytical interface behavior. Matter-specific fit: IXL and Wyzant unstructured-data analytics, affinity scoring, personalization and layered visual analytics.

RELEVANT WORK

Invented treemaps; founded the Human-Computer Interaction Lab; extensive work in information visualization.

PUBLIC LITIGATION EXPERIENCE

The reviewed UMD public materials do not identify expert-testimony work.

POINTS FOR FURTHER DILIGENCE

Emeritus status and HCI emphasis are less direct for modern ML pipelines, affinity scoring or production back-end implementation.

[Source 1](#) | [Source 2](#)

[Draft email](#) | ben@cs.umd.edu | [public email source](#)

Candidates 7-8 for further diligence

07 Cynthia Rudin

Gilbert, Louis, and Edward Lehrman Distinguished Professor of Computer Science, Duke University

TECHNICAL FIT

Interpretable machine learning and scoring systems fit affinity models, feature attribution, model comparison and explainability of personalized outputs. Matter-specific fit: IXL and Wyzant unstructured-data analytics, affinity scoring, personalization and layered visual analytics.

RELEVANT WORK

Leads Duke Interpretable Machine Learning Lab; work on sparse scoring systems, decision trees and interpretable neural networks.

PUBLIC LITIGATION EXPERIENCE

The reviewed Duke profile and CV do not identify expert-testimony work.

POINTS FOR FURTHER DILIGENCE

Interpretability focus is less direct for visual-analytics UI implementation and education-market operational data.

[Source 1](#) | [Source 2](#)

[Draft email](#) | cynthia@cs.duke.edu | [public email source](#)

08 Thorsten Joachims

Vice Provost for AI Strategy and Jacob Gould Schurman Professor, Cornell University

TECHNICAL FIT

Learning-to-rank, recommender systems, counterfactual evaluation and exposure fairness directly fit tutor ranking and affinity scoring. Matter-specific fit: IXL and Wyzant unstructured-data analytics, affinity scoring, personalization and layered visual analytics.

RELEVANT WORK

Developed SVMrank and major methods for learning from biased interaction data; leadership in KDD, ICML and RecSys.

PUBLIC LITIGATION EXPERIENCE

The reviewed Cornell profile does not identify expert-testimony work.

POINTS FOR FURTHER DILIGENCE

Ranking expertise is less direct for layered visual analytics or accused product architecture; senior university role may constrain time.

[Source 1](#)

[Draft email](#) | tj@cs.cornell.edu | [public email source](#)

Candidates 9-10 for further diligence

09 Foster Provost

Ira Rennert Professor of Entrepreneurship, Professor of Technology, Operations and Statistics, and Professor of Data Science, NYU Stern

TECHNICAL FIT

Predictive analytics, social-network marketing, fine-grained behavior data and explaining complex systems fit affinity scoring and commercial analytics. Matter-specific fit: IXL and Wyzant unstructured-data analytics, affinity scoring, personalization and layered visual analytics.

RELEVANT WORK

Award-winning data mining and machine-learning research; co-founded multiple analytics companies and authored Data Science for Business.

PUBLIC LITIGATION EXPERIENCE

His public NYU biography expressly states that he has served as an expert witness in cases involving data science.

POINTS FOR FURTHER DILIGENCE

Business/data-science breadth is strong, but matter-specific neural architectures, visual front ends and education-domain implementation may need supplementation.

[Source 1](#) | [Source 2](#)

[Draft email](#) | fprovost@stern.nyu.edu | [public email source](#)

10 Rayid Ghani

Distinguished Career Professor of Machine Learning and Public Policy, Carnegie Mellon University

TECHNICAL FIT

Applied ML, analytics, ranking/evaluation and deployed decision systems fit operational affinity scoring and real-world model validation. Matter-specific fit: IXL and Wyzant unstructured-data analytics, affinity scoring, personalization and layered visual analytics.

RELEVANT WORK

Former Accenture analytics research director and Obama for America chief scientist; leads Data Science for Social Good Lab.

PUBLIC LITIGATION EXPERIENCE

His public CMU profile notes testimony before Congress on AI and bias, but the reviewed materials do not identify expert-witness testimony in litigation.

POINTS FOR FURTHER DILIGENCE

Public-policy orientation is less direct for patent-priority technical history, visual interface architecture or education-platform source code.

[Source 1](#) | [Source 2](#)

[Draft email](#) | rayid@cmu.edu | [public email source](#)

Preliminary candidates; no conflicts or availability determination

- Run party, affiliate, counsel, inventor, funder, and technology conflicts.
- Confirm testimony history, exclusions, compensation, publications, patents, and deposition performance.
- Investigate licensing, grants, consulting, commercial interests, and prior technical positions.
- Confirm role fit, availability, and interest only after counsel authorizes outreach.

ONGOING MATTER-SPECIFIC RESEARCH

Flint Witness Research works in the post-filing window, turning pleadings and public technical records into issue maps, researched candidate slates, and diligence starting points as the case develops.

[Schedule a 15-minute conversation](#)

CORE SOURCES

Public docket: <https://dockets.justia.com/docket/delaware/dedce/1%3A2026cv01067/94332>

Official attorney biography and email: <https://www.rlf.com/lawyers/travis-s-hunter/>

Public technical context source: <https://ai-lab.exparte.com/case/dct/ded/1%3A26-cv-01067/doc/analysis/1>

LIMITATIONS

This is a preliminary technical frame based on public sources. Filed pleadings, claim charts, discovery, source code, product versions, and admissible evidence must control.

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